

Legal Prohibition Of Insulting Other Religions



Muhammad Jawad Fazel Lankarani

Al-Islam.org

Message of Thaqaalayn Vol. 18, no. 2, Summer 2017

[1] [1]

SHARES

Authors(s):

[Muhammad Jawad Fazel Lankarani](#) [2]

Publisher(s):

[Ahlul Bayt World Assembly](#) [3]

Legal Prohibition Of Insulting Other Religions And Their Sacred Figures And Places In Shi'a Jurisprudence

The journal sets a foundation of guidelines to follow from the Quran and Hadith when in a situation where there is criticism towards Islam and how to respond in debates/arguments with people from other beliefs and faiths.

[Get PDF](#) [4] [Get EPUB](#) [5] [Get MOBI](#) [6]

Topic Tags:

[Interfaith dialogue](#) [7]

Legal Prohibition Of Insulting Other Religions And Their Sacred Figures And Places In Shi'a Jurisprudence

Ayatullah Muhammad Jawad Fazel Lankarani

Translated by Mahboobeh Morshedian

Abstract: Insulting or disrespecting other religions and their sacred figures and places is a broad and significant subject in Shi'a jurisprudence. The question often arises as to whether insulting sanctities is legally prohibited or not. Using the Qur'an and hadith as sources, this article—an abridged transcript of Ayatullah Lankarani's lecture— clarifies the meaning of insult, and covers the consensus in Shi'a

jurisprudence with regards to the prohibition of insult to divine *hurumat* (sanctities), that is, God, angels, prophets, the Qur'an, divine books, mosques, temples, and shrines.

The issue of insult is an important and broad one in Shi'a jurisprudence. There are discussions about insult in various categories, such as insult to a believer, a jurisprudent, holy places, Ka'bah, Mecca, our leader's holy shrines, our other sanctities, even the turbah of Imam Husayn¹ in Shi'a jurisprudence. Often there are two questions posed on these issues: Is it prohibited (*haram*) to insult *hurumat* and the sanctities or not? And according to some jurisprudents, is it obligatory to venerate the Divine rites or not?

***Hurumat* (sanctities)**

There is consensus on the answer to the first question. In Shi'a jurisprudential texts, consensus has been sought as regards the prohibition of insult to the Divine *hurumat* (the plural of *hurum*, that is, something that should not be desecrated) and sanctities. The following are considered sanctities: God, the greatest sanctity, the Heavenly angels, all divine prophets, particularly Prophet Muhammad, the Qur'an, the original Divine books, for example, Torah and Gospel, mosques, temples, holy shrines.

In other words, "That which is respected in religion and has a high status before Allah is considered as *hurum*, albeit with different ranks of being *hurum*." I will explain later that "man qua man" is also included in this list, although it is not specified in Shi'a jurisprudential books. According to narrations and rational arguments, it is haram to desecrate a believer or a Muslim, but based on rational arguments and Islamic narrations on what is included in *hurumat*, it is not unlikely that prohibition of desecrating "man qua man" can be also concluded.

However, there is consensus about the items whose desecration is prohibited, and even more strongly they are required to be considered as *hurumat* in Islam. In other words, the prohibition of insulting God, Islam, and the Divine prophets is regarded as necessary (ḥarurui; self-evident), and if something is necessary in Islam, jurisprudents should not search for a reason for it, and it does not need any reason.

Besides consensus and necessity, there are Qur'anic verses and hadiths that are necessary to consider on this subject to resolve contemporary issues; for example, the verses

ذَلِكَ وَمَنْ يُعَظِّمْ حُرْمَاتِ اللَّهِ فَهُوَ خَيْرٌ لَهُ عِنْدَ رَبِّهِ...

"That. And whoever venerates the sacraments of Allah, that is better for him with his Lord..."
(22:30).

and

ذَلِكَ وَمَنْ يُعَظِّمْ شَعَائِرَ اللَّهِ فَإِنَّهَا مِنْ تَقْوَى الْقُلُوبِ

“That. And whoever venerates the sacraments of Allah —indeed that arises from the Godwariness of hearts.” (22:32).

from which some inferred the necessity of veneration of sanctities. Of course, one can infer the prohibition of insulting sanctities as well. Likewise, the verse

وَلَا تَسُبُّوا الَّذِينَ يَدْعُونَ مِنْ دُونِ اللَّهِ فَيَسُبُّوا اللَّهَ عَدْوًا بِغَيْرِ عِلْمٍ ۗ كَذَلِكَ زَيْنًا لِكُلِّ أُمَّةٍ عَمَلُهُمْ...

“Do not abuse those whom they invoke besides Allah, lest they should abuse Allah out of hostility, without any knowledge. That is how to every people We have made their conduct seem decorous...” (6: 108).

in which the insult to the disbelievers’ gods or idols is prohibited.

Likewise, there is a hadith by Imam al-Rida saying, “Surely our opponents forged some hadiths on our virtues...”² The Imam also added in this hadith, “A way of hostility to us – the Ahlul-Bayt – is to forge some hadiths by us on our enemies’ immorality and to insult them so that if the masses and Sunnis heard them, they would insult us.”

He also referred to the verse,

وَلَا تَسُبُّوا الَّذِينَ يَدْعُونَ مِنْ دُونِ اللَّهِ...

“Do not abuse those whom they invoke besides Allah...” (6: 108).

Likewise, in the book al-Kafi, Imam al-Sadiq was quoted as saying, “Beware of insulting the enemies of Allah because if they hear your insults, they will ignorantly insult Allah in return...”³ Thus, in the Qur’anic verses and hadiths, it is prohibited (*haram*) to insult others.

An important issue to note is that prohibition of insulting God, Islam, or Prophet Muhammad is *mawlawi*⁴. But a question arises here whether prohibition of insulting idols in the verse is also *mawlawi* or *irshadi*⁵. Those who hold it to be *mawlawi* believe that it is prohibited and whoever commits it deserves punishment of the hereafter, but those who take it to be *irshadi* believe that its prohibition is in order to avoid the harm which is mentioned in the verse,

...فَيَسُبُّوا اللَّهَ عَدْوًا بِغَيْرِ عِلْمٍ...

“Lest they should abuse Allah out of hostility, without any knowledge...” (6: 108).

And if one does it that bad outcome happens but if that does not happen there might be no other wrong

involved and there might be no punishment in the Hereafter.

Then a general rule can be drawn up; a rule which states that insulting anything sacred to others is not permissible either, but as an *irshadi* (edifying) legal ruling not a *mowlawi* legal ruling.

Of course, there is clearly a difference between insult, dissociation and cursing on the one hand and forbidding wrong on the other. We should encounter and take a stance against others' immoral actions according to our beliefs. Any oppressive action should be opposed. However, what is emphasised in Islam is that one should abstain from insulting others. This is one topic, and considering others' deeds and beliefs as wrong is a completely different topic.

It is strongly prohibited in Shi'i jurisprudence to insult others' sanctities, but not insulting them is one issue; respecting a false thing is entirely a different issue. For example, look at the book *Anawin* by Mir-Fattah or the book *Qawa'id-ul-Fiqhiyyah* by the late Bujnardi; according to them, a Shi'a legal ruling – as I said – is that “Insulting sanctities is haram.” In the first volume of the book *Anawin*, Mir-Fattah writes, “It is Haram to insult and belittle what is religiously venerated.” He continued his argument, resorting to intellect, narrations, and consensus to give this verdict.

It is not permissible to insult what is sacred to others, but it does not mean that it is obligatory to venerate what we consider as false, but others consider sacred. Hence, the necessity of venerating the true divine rites can be inferred from these verses discussed above:

ذَلِكَ وَمَنْ يُعْظِمِ حُرْمَاتِ اللَّهِ...

“That. And whoever venerates the sacraments of Allah...” (22:30).

ذَلِكَ وَمَنْ يُعْظِمِ شَعَائِرَ اللَّهِ...

“That. And whoever respects the signs of Allah” (22:32).

However, the issues which cannot be attributed to God are not Divine rites and sacraments of Allah and cannot be venerated and revered, although it may not be appropriate to insult them for other reasons.

Nowadays an issue under consideration is whether it is permissible to insult what is sacred to others or not. In Shi'a jurisprudence, the legal ruling on insult is very firm. According to Shi'a narrations, if somebody insults a believer, he has invited God to a fight. Likewise, according to hadiths, if someone insults a jurisprudent, he will meet God on the Day of Judgement while He is angry with him. In this regard, we can say using the verse

وَلَقَدْ كَرَّمْنَا بَنِي آدَمَ...

“Certainly, We have honoured the Children of Adam...” (17:70).

The principle of honouring human beings can be inferred (as it can be inferred from some words of Imam Ali). In other words, it can be said that “man qua man” is dignified, and this dignity requires one to believe that insulting people is not permissible in that they are human beings. This prohibition is stricter in the case of Muslims, and the strictest is the case of insulting jurists.

Likewise, it can be said that if “man qua man” is dignified, then his belief or religion, whether it is monotheistic according to our beliefs or not, should not be insulted as it is an aspect of his life. Of course, there is a difference between negating and dissociating from a deviating concept, on the one hand, and insulting it, on the other; they two should not be confused.

I should also point out that in Shi’a jurisprudence, there is, on the one hand, the issue of prohibition of insult, and on the other, the issues of dissociation and forbidding evil. One should not think that they contradict each other; insulting and dissociating from something are separate issues. Dissociation means one takes a stance against the falsehood or someone who has committed a great evil. For example, dissociation from oppression means I – as a human being – dissociate from this oppressor’s tyranny, and no one can say this stance is an insult.

When God curses the disbelievers, polytheists, hypocrites, and scholars who hide the truth, it means they are away from God’s mercy, and this, in fact, is to express dissociation from them. From the verse,

...فَمَنْ اَعْتَدَىٰ عَلَيْكُمْ فَاعْتَدُوا عَلَيْهِ بِمِثْلِ مَا اَعْتَدَىٰ عَلَيْكُمْ...

“So should anyone aggress against you, assail him in the manner he assailed you.” (2: 194).

Some might infer that if someone insults you, you should insult him in return. However, no jurist has accepted this inference. Insulting is haram, and it is not wise to do a haram in return for another haram action. We – Muslims – should react to disbelievers’ insult to the Qur’an logically, through arguments and proofs. Of course, the society should be made aware of their plot, without insulting them. It is not permissible to return the insult.

[1.](#) The Soil of his burial place.

[2.](#) Uyun Akhbar-a-Ridha, vol. 1, p. 304.

[3.](#) Al-Kafi, vol. 8, p.7.

[4.](#) The Mowlawi legal ruling is issued to urge Muslims to act. According to it, compliance with an Islamic injunction results in a reward, and disobedience ends in punishment, for example, enjoining prayer and forbidding fornication.

[5.](#) Unlike the Mowlawi legal ruling, the Irshadi (Edifying) legal ruling is issued merely to edify or guide Muslims, and to make them aware of the good of compliance with an Islamic injunction or the evil of a forbidden deed.

[1] [1]

SHARES

Source URL:

<https://al-islam.org/message-thaqalayn/vol-18-no-2-summer-2017/prohibition-insulting-other-religions-lankarani>

Links

[1] <https://www.addtoany.com/share>

[2] <https://al-islam.org/person/muhammad-jawad-fazel-lankarani>

[3] <https://al-islam.org/organization/ahlul-bayt-world-assembly>

[4] <https://al-islam.org/printpdf/book/export/html/168667>

[5] <https://al-islam.org/printepub/book/export/html/168667>

[6] <https://al-islam.org/printmobi/book/export/html/168667>

[7] <https://al-islam.org/tags/interfaith-dialogue>